FREE LEGAL GUIDE #4

NDPS Act Defence Guide

Drug Offence Charges in India

Quantities, bail restrictions, seizure procedure,
and your legal options under the NDPS Act

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NDPS Act: Your Legal Options if Charged with Drug Offences

Charges under the Narcotic Drugs and Psychotropic Substances Act, 1985 (NDPS Act) are among the most serious in Indian criminal law. Bail is severely restricted, sentences can be life imprisonment or death, and even possession of small quantities carries mandatory minimum sentences. Understanding the law is essential if you or a family member faces NDPS charges.

WARNING: NDPS offences are non-bailable by default. Bail is governed by Section 37 NDPS which creates a double presumption making bail extraordinarily difficult. Early legal intervention is critical.

UNDERSTANDING QUANTITIES: SMALL, INTERMEDIATE, COMMERCIAL

The quantity of the seized substance is the single most important factor in an NDPS case. It determines whether Section 37 (bail restriction) applies and what the minimum sentence is.

Substance	Small Quantity (S.27 — lesser sentence)	Commercial Quantity (S.31 — 10yr-Life/Death)
Ganja (Cannabis/Marijuana)	1 kg	20 kg
Charas / Hashish	100 g	1 kg
Heroin	5 g	250 g
Cocaine	2 g	100 g
Methamphetamine	5 g	250 g
Opium	25 g	2.5 kg

Quantities between small and commercial are 'intermediate' — punishable with up to 10 years. Quantities at or above commercial threshold trigger Section 37 bail restrictions.

SECTION 37 NDPS — THE BAIL RESTRICTION

Section 37 NDPS is unique in Indian law. It applies to commercial quantity cases and requires the court to be satisfied of two things before granting bail:

1. There are reasonable grounds to believe the accused is NOT guilty of the offence.
2. The accused is NOT likely to commit any offence while on bail.

This is a reversal of the normal presumption of innocence. In Section 37 cases, the burden effectively shifts to the accused to show they are unlikely to be guilty. This makes a well-argued bail application at the High Court critically important.

LEGAL DEFENCES IN NDPS CASES

● Challenge the Seizure Procedure

Section 42 NDPS requires prior information to be reduced to writing and sent to a superior officer before conducting a search without a warrant. Non-compliance with this procedure is a strong defence — courts have acquitted accused persons on this ground alone.

● Independent Witness Requirement

Section 100 BNSS (formerly Section 100 CrPC) requires two independent and respectable witnesses during search and seizure. If the panchnama was prepared only with police witnesses (mahazarnamas without independent panchas), this can be challenged.

● Chain of Custody of Samples

The seized substance must be weighed, sampled, and sent to a Forensic Science Laboratory (FSL) in accordance with the NDPS Standing Orders. Gaps in the chain of custody — especially between seizure and FSL receipt — are a powerful defence argument.

● FSL Report Challenges

The FSL report identifying the substance is the primary evidence. Your lawyer can examine whether the correct test was used, whether the sample was properly sealed, and whether the analyst is a competent witness. Cross-examination of the FSL analyst is often decisive.

● Planting / False Implication

In cases where a private citizen is arrested, it is common for defence to raise the argument of false implication — particularly where there is no prior criminal history and the quantity found is near the boundary between small and intermediate.

● Minimum Quantity Arguments (Small Quantity Bail)

If the quantity is below the small quantity threshold, Section 37 does not apply and the normal bail standard applies. Getting an accurate FSL-confirmed weight is therefore extremely important — a difference of a few grams can change the legal category entirely.

BAIL IN NDPS CASES — WHAT TO EXPECT

The route to bail depends on the quantity involved:

- Small quantity (e.g., ganja below 1 kg): Normal bail — apply at Magistrate/Sessions Court
- Intermediate quantity: Sessions Court application, difficult but possible with good grounds

• Commercial quantity: Section 37 applies — Sessions Court first, then Bombay High Court

• Default bail (Section 479 BNSS): If chargesheet not filed within 60 days (non-bailable) or 90 days, accused has a right to bail regardless of the offence — this is a powerful remedy

> Default bail under Section 479 BNSS is an indefeasible right. If police fail to file the chargesheet within the statutory deadline (60 or 90 days depending on the offence), bail must be granted even in commercial quantity NDPS cases.

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